

22STCV08806 22STCV08806

County: los-angeles

Division: Civil Law and Motion

Department: 413

Hearing date: 2026-08-12

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Case Number: 22STCV08806 Hearing Date: August 12, 2026 Dept: 413

TENTATIVE RULING

HEARING DATE: August 12, 2026

CASE NUMBER: 22STCV08806

CASE NAME: Gomez v. General Motors LLC

MOVING PARTY: Plaintiff Juan A. Gomez

OPPOSING PARTY: Defendant General Motors, LLC

PROCEEDING: MOTION FOR ATTORNEY FEES

RULING SUMMARY: Motion for Attorney Fees is denied.

Background

This is

a lemon law action. The Court dismissed the complaint with prejudice pursuant to settlement on February 28, 2024.

Plaintiff

filed a motion for attorneys' fees and costs on April 23, 2026, two years and 54 days after the Court entered the dismissal. Defendant opposes.

The

motion is denied as untimely. A party has at most 180 days to serve and file a

motion for attorneys' fees after entry of dismissal. (Hatlevig v. General Motors LLC (2026) 118 Cal.App.5th 644, 648-650 (Hatlevig).) Here, Plaintiff waited more than four times that long.

Plaintiff

contends this case is distinguishable from Hatlevig because the Court retained jurisdiction under Code of Civil Procedure section 664.6. The Court disagrees with that assertion, because Plaintiff's motion is not a motion to enforce the settlement; it is a motion for fees, as authorized by the settlement. Madrigal v. Hyundai Motor America (2023) 90 Cal.App.5th 385, which interpreted the definition of "judgment" for purposes of a 998 Offer, has no effect on the result. In fact, Madrigal confirmed that "a pretrial dismissal with prejudice pursuant to a settlement agreement constitute[s] a 'judgment' for purposes of seeking fees under the Song-Beverly Act." (Id. at 403 (citing Wohlgemuth v. Caterpillar Inc. (2012) 207 Cal.App.4th 1252, 1259-1260).)

Plaintiff's

time to file his motion expired on August 26, 2024. He did not file his motion until April 23, 2026. The motion is denied.

Conclusion

Plaintiff

Juan A. Gomez's Motion for Attorney Fees is denied.

Date: August

12, 2026 _____

William

E. Weinberger

Judge,

Los Angeles Superior Court